

CALIFORNIA LEGISLATURE—2025-2026 SIMULATION SESSION

SENATE BILL

NO. 19

Introduced by Senator Pérez

Endorsed by Senators: Caballero, Laird, Grayson, Wiener, Ashby, Blakespear, Padilla,
Mcguire.

October 1, 2025

A bill to strengthen the civil protections of individuals and promote transparency when cooperating with federal immigration enforcement agencies within the state of California regardless of immigration status.

LEGISLATIVE COUNCIL'S DIGEST

SB-19, as introduced, Pérez. Dignity and Accountability for All.

Existing laws such as the California Values Act (Government Code Section 7282-7282.5) state that local law enforcement agencies are generally prohibited from using resources to investigate, detain, or transfer individuals based solely on immigration status, except under limited circumstances involving violent offenses. While these statutes support California's policy of limiting involvement in federal immigration enforcement in order to protect due process, the current law does not provide a specific right of action to individuals who seek damages if these agencies violate immigration enforcement regarding constitutional rights.

This bill would create a division of government code that creates a private right of action allowing any person the ability to sue the state or local employees who unlawfully aided federal immigration enforcement that violated the California Constitution or State Statutes. This bill would authorize the California Attorney General to publicly report violations, in turn strengthening accountability procedures not currently held in existing law.

Vote: Majority Appropriation: Yes Fiscal Committee: Yes Local Program: No

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

SECTION 1. Division 3. (commencing with Section 15205) is added to the Government Code, to read:

DIVISION 1. 15205. All individuals within the state of California are safeguarded from unlawful detention, questioning, surveillance, and data sharing as a result of cooperation between state or local authorities and federal immigration enforcement agencies.

SECTION 2.

15206. Prohibited Acts.

No state or local authority and or employee shall:

- (a) Participate in any action which violates the rights protected by Article 1, Section 1 and 7 of the California Constitution.
- (b) Detain or assist in the detention of any individual based solely on immigration status.
- (c) Provide federal immigration agencies entrance to areas restricted from public access within detention facilities without a proper judicial warrant.
- (d) Share personal identifying information such as employment and immigration status.
- (e) Engage in joint enforcement operations with federal immigration agencies unless explicitly authorized by law.

15207. Civil Action.

- (a) Any individual subjected to detention, questioning, search, surveillance, or in violation of this section may bring civil action to court for:
 - (1) Injunctive relief in order to prevent ongoing violations.
 - (2) Actual damages.
 - (3) Punitive Damages.
 - (4) Attorney fees within reasonable parameters.
- (b) Sovereign immunity is waived for actions brought under this division.
- (c) This section shall not be constructed to limit any other available remedies under law.

15209. Reporting.

- (a) The Attorney General shall establish a public reporting system in order to collect complaints of alleged violations stated within the parameters of this division.
- (b) The Attorney General shall investigate substantial complaints and report to the legislature annually on:
 - (1) The total number of complaints received.
 - (2) Investigations conducted and enforcement actions taken.
- (c) The required duty of reporting shall take effect exactly one year after the implementation of this division.

15210. Protections for Whistleblowers.

- (a) No state or local agency shall express retaliation against any employee who reports conduct indicative of a violation to this division.
- (b) Retaliation includes, but is not limited to, suspension, demotion, termination, and harassment.
- (c) if retaliation occurs, the employee may file a complaint through the California Labor Commissioner or any other applicable agency.

SECTION 3. The provisions within this act are severable. In the event any provision of this act or its applications are held invalid, that invalidity shall not affect other provisions or applications.

SECTION 4. A sum of five hundred thousand dollars shall be appropriated from the General Fund to the Department of Justice in order to implement and enforce Division 3 (commencing with Section 89000) of the Government Code, as added by this act.

(a) breakdown of cost:

- (1) The annual salary of two attorneys and a supervisor can be estimated as an expense of four hundred and fifty thousand dollars.
- (2) Operational costs such as database maintenance, public outreach, and implementation of a complaint processing system can be equated to approximately fifty thousand dollars.